

24STLC02506 24STLC02506

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F06%2F2026

Source SHA-256: 6c6ba7aed0435ba836df9b22e95e4b3aadf6a5850de44fa3167e1e87e0c93059

Case Number: 24STLC02506 Hearing Date: July 6, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Mark Tunne's Petition to Correct and Vacate

Arbitration Award is continued to 08/03/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/10/2026, Plaintiff is to file proof of service of the Petition to Correct and Vacate Arbitration Award and Notice of the New Hearing Date. Failure to do so may result in the Petition to Correct and Vacate Arbitration Award being denied.

Defendants Brandon Blake and Blake & Wang, P.A.'s

Petition to Confirm Arbitration Award is advanced to 07/06/2026 and continued to 08/03/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/10/2026, Defendants are to file proof of service of the Notice of New Hearing Date. Failure to do so may result in the Petition to Confirm Arbitration Award being denied.

Opposition and reply papers are to be filed and served in accordance with the Code of Civil Procedure.

Analysis:

On April 5, 2024, Plaintiff Mark Tunne ("Plaintiff") filed the instant action against Defendants Brandon Blake and Blake & Wang, P.A. ("Defendants"). The Court granted Defendants' Motion to Compel Arbitration on September 30, 2024. (Minute Order, 09/30/24.)

On April 3, 2026, Plaintiff filed the instant Petition to Correct and Vacate Arbitration Award. On April 30, 2026, Defendants filed a

Petition to Confirm Arbitration Award which is set for hearing on July 8, 2026.

Plaintiff's Petition to Correct and Vacate does not include a proof of service of the Petition itself, nor a notice of hearing and proof of service of the same. Defendant's Petition includes a proof of service of the Petition to Confirm, but no notice of hearing or proof of service of the same. Failure to give notice of the papers and hearing date is a violation of due process and of the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

Accordingly, the Court continues the hearing on both Petitions so that they may be heard concurrently, and with proper notice to the other side of the moving papers and hearing date.

Plaintiff Mark Tunne's Petition to Correct and Vacate Arbitration Award is continued to 08/03/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/10/2026, Plaintiff is to file proof of service of the Petition to Correct and Vacate Arbitration Award and Notice of the New Hearing Date. Failure to do so may result in the Petition to Correct and Vacate Arbitration Award being denied.

Defendants Brandon Blake and Blake & Wang, P.A.'s Petition to Confirm Arbitration Award is advanced to 07/06/2026 and continued to 08/03/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/10/2026, Defendants are to file proof of service of the Notice of New Hearing Date. Failure to do so may result in the Petition to Confirm Arbitration Award being denied.

Opposition and reply papers are to be filed and served in accordance with the Code of Civil Procedure.

Moving parties to give notice.